CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
June 27, 2012
7:00 P.M.
Opa-locka Municipal Complex
780 Fisherman Street, 2nd Floor
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, June 27, 2012 on the 2nd Floor of the Opa-locka Municipal Complex, 780 Fisherman Street, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Commissioner Gail E. Miller, Commissioner Timothy Holmes, Vice Mayor Dorothy Johnson and Mayor Myra L. Taylor. Also in attendance were: City Manager Bryan K. Finnie, City Attorney Joseph S. Geller and Interim City Clerk Joanna Flores.

3. INVOCATION:

The Invocation was delivered by Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Finnie deferred agenda item 19-3.

The following items were pulled from the Consent Agenda to be discussed separately under agenda item 15 – Action Items: 19-1, 19-2 (Johnson) and 19-4, 19-5, 19-6, 19-7 (Holmes).

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes

Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Request to amend the agenda to include item 16-1:

16-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO ACCEPT THE RESIGNATION OF CITY MANAGER BRYAN FINNIE EFFECTIVE AS OF JULY 31, 2012; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to amend the agenda to include the above resolution as item 16-1.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 06/13/2012

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to approve the minutes of the Regular Commission Meeting of June 13, 2012.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

9. 17th CONGRESSIONAL DISTRICT OF FLORIDA REPORT:

Due to the redistricting, Vice Mayor Johnson indicated that a portion of Opa-locka is in the 20th Congressional District of Florida. She requested this representative is sent an invitation to city meetings and be included on the city commission agendas.

10. STATE SENATORS REPORT:

11. STATE REPRESENTATIVES REPORT:

12. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mayor Taylor informed the Commission that Mr. Larry Gardner, Community Liaison for District One would not be in attendance due to another engagement.

13. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

14. PUBLIC PRESENTATION:

1. Nova Lee of 1833 NW 5th Place, Miami, Florida, came forward and presented the Commission with handouts. She spoke on behalf of International Power USA LLC regarding the property located at 2091 - 2093 NW 139 Street. This property was purchased for the purpose of a auto body shop, but the owner was denied by the city who cited they were no longer issuing permits for auto body shops at that location because the previous businesses were grandfathered in. She requested that the City Commission approve this business which has already been approved by DERM.

Manager Finnie asked that the Commission allow him the opportunity to review this matter and meet with Mrs. Lee in efforts to bring a resolution to this issue.

2. Reverend Joseph L. Kelley of 485 Dunad Avenue, Opa-locka, Florida, appeared before the City Commission and voiced his concerns relating to the budget amendments, agenda item 19-7 as it relates to an administrative foreclosure program, and the burglaries including A/C Unit thefts. As it relates to the recent increase in burglaries, he requested that the City Commission do something to address this issue.

Vice Mayor Johnson said that in the Superior Gardens area the A/C units are being stolen in broad daylight. In addition to what Reverend Kelley stated, she directed the City Manager to look at the county's plan to reduce these thefts because they are looking at it county wide. She hoped that the city could address this issue and come up with an immediate plan of action.

14a. CITIZENS' FORUM:

1. Eldridge Redmon of Villa Francine appeared before the City Commission and expressed his concerns relating to a citation he received and a problem with the grass at the area between Wells Fargo and Villa Francine. In question was who owned the property and who is responsible for the maintenance.

Commissioner Miller requested clarification relating to the exact location of this property.

Manager Finnie explained the location of the property. He said he would have to research that particular property, but it was never his understanding that the city owned it.

Commissioner Holmes indicated that Mr. Redmon previously visited his office and as a result he was going to give the information to the City Manager so that he can direct the city's Urban Rangers to cut the grass.

Vice Mayor Johnson recalled the time when there were numerous tractor trailers parking on that property and a person was sexually assaulted. At that time, it was distinguished that the City of Opa-locka does not own the property unless something happened since then. However, she brought to the City Manager's attention that there is legislation addressing abandoned properties whereby the city place liens on the property, but those maintenance fees can also be added to the property taxes. Additionally, she mentioned to the City Manager that the vacant apartments in that same area need to be boarded up.

She directed the City Attorney to prepare legislation that would allow for the maintenance costs to be added to the property's tax roll.

15. ACTION ITEMS (items from consent agenda pull list):

1. (19-1) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO REMOVE BRYAN K. FINNIE AS THE CITY MANAGER, DUE TO LACK OF CONFIDENCE; PROVIDING FOR INCORPORTION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes for discussion.

Based on the recent receipt of Bryan Finnie's letter of resignation effective July 27, 2012, Commissioner Holmes withdrew the above resolution.

The motion and seconded were withdrawn.

2. (19-2) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AMEND RESOLUTION 11-8232 TO REFLECT A NAME CHANGE FROM THE CITY OF OPA-LOCKA EDUCATION & SCHOLARSHIPS FOUNDATION, INC. TO THE CITY OF OPA-LOCKA EDUCATIONAL FOUNDATION, INC.; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

After doing some research on sunbiz.org, Vice Mayor Johnson said that since the foundation has not yet been incorporated she would like to make the name change as stated in the resolution to ensure transparency. She said she didn't want to give the perception of the commission members competing since several already have scholarships.

She continued by providing further clarification as requested by Commissioner Miller as to the intent of the resolution.

She further explained that in 2010 the City Commission adopted an education compact of which she would be meeting with affiliations on July 11, 2012 to finalize. The foundation is to help the education compact without having funds coming out of the general fund.

Mayor Taylor asked, what are the differences of the various scholarships? She said her scholarship is for childcare facilities within the City of Opa-locka,

Commissioner Miller said her scholarships targets high school seniors who will be entering college.

Vice Mayor Johnson said the scholarships for the organization she founded are for Miami-Dade County Public Schools all levels.

Mayor Taylor clarified that the purpose of the resolution is just to remove the word "scholarship".

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

3. (19-3) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH COMTECH ENGINEERING, INC. FOR THE REHABILITATION OF SANITARY SEWER PUMP STATION 10, IN AN AMOUNT NOT TO EXCEED SIX HUNDRED SEVENTY SIX THOUSAND FIVE HUNDRED FORTY-THREE DOLLARS AND THIRTY CENTS ($676,543.30), PAYABLE FROM ACCOUNT NUMBER 35-535630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was deferred by the City Manager.

4. (19-4) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ACCEPT THE SETTLEMENT OFFER BY MIAMI-DADE COUNTY DEPARTMENT OF HEALTH (DOH) FOR THE VIOLATION OF RULE 62-555.345, F.A.C. SECTION 403.121(3) (A), RULE 40 CFR 121 SUBPART I, SECTION 403.121 (4) (E), RULE 62-550.824(3) (A), F.A.C. AND SECTION 403.131(4) (F) IN THE AMOUNT OF EIGHT THOUSAND DOLLARS ($8,000), PAYABLE FROM ACCOUNT NUMBER 64-533520; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Manager Finnie briefly provided an explanation on the above item.

Vice Mayor Johnson expressed her concerns with the city having qualified staff and the city's ongoing violations of the law as it relates to projects in the city. Similar issues occurred with the Sherbondy Village project and that is the reason the city had to continue going to the county for many issues. Some of the same personnel are here today that was here back then and she hope this is a lesson learned.

Manager Finnie stated that most of those individuals are no longer with the city. He commended the Public Works Department because when this issue first came up, they addressed it directly. The city fine could have been far more significant than $4,000.00 per incident had they not shown a level of professionalism.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

5. (19-5) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ISSUE A REQUEST FOR QUALIFICATIONS (RFQ) FOR THE PREPARATION OF TRANSPORTATION MASTER PLAN AND ENHANCEMENT STUDY PHASE I PER MPO GRANT FOR THE CITY OF OPA-LOCKA FROM RESPONSIVE CONSULTING FIRMS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

At the request of Commissioner Holmes, Manager Finnie briefly provided an overview of the resolution.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes

Mayor Taylor	Yes

6. (19-6) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO AWARD RFQ 12-2505100 TO MARCUM LLP AND NEGOTIATE AND EXECUTE AN AGREEMENT FOR CONSULTING SERVICES RELATED TO PROVIDING FORENSIC AUDIT OF THE UTILITY BILLING ACCOUNTS, IN AN AMOUNT NOT TO EXCEED $35,000, PAYABLE FROM ACCOUNT NUMBER 61-513320, AND IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

At the request of Commissioner Holmes, Manager Finnie briefly explained this resolution.

Vice Mayor Johnson recalled attending Miami-Dade County League of Cities meeting and it was highlighted at that time that a municipality through a forensic audit put a lot of things in place. She suggested that the city also include its collection process.

Manager Finnie stated that this company will look at the collection process as well.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

7. (19-7) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE AN "ADMINISTRATIVE FORECLOSURE PROGRAM" ON CERTAIN PROPERTIES IN THE CITY OF OPA-LOCKA WITH OUTSTANDING LIENS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Commissioner Holmes asked, what is the plan once the city forecloses on these properties?

Manager Finnie explained that the plan is to foreclose on properties after he comes back to the City Commission and develop a utilization plan for those properties. This legislation is just giving the instrument to foreclose.

Vice Mayor Johnson requested that this resolution is deferred until a detailed outline process is presented to the Commission because this information must be provided prior to and not after the fact.

The motion and seconded were withdrawn. Manager Finnie deferred the resolution.

16. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO ACCEPT THE RESIGNATION OF CITY MANAGER BRYAN FINNIE EFFECTIVE AS OF JULY 31, 2012; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the resolution.

Vice Mayor Johnson stated that the Commission received the City Manager's resignation letter on that day and she consulted with the legal department to come up with this legislation to allow for a smooth transition.

Commissioner Holmes concurred with Vice Mayor Johnson based on the City Commission being in a position to hire a new city manager during the Special Commission Meeting scheduled for June 28, 2012.

Commissioner Tydus stated that she was in favor of the resignation taking into consideration the fact that Mr. Finnie's resolution extending his tenure for an additional six months would end June 30, 2012 of which she has supported despite criticism. However, she is not in agreement with the three months severance pay in that his tenure was to end June 30, 2012 and there was no provision in that resolution for a severance pay.

Vice Mayor Johnson stated that the severance would really equal two months because for one month Mr. Finnie will be working with the incoming City Manager until July 31, 2012. This would allow Mr. Finnie to transition out and the two months is fair.

She further stated that quite often the city has employees that sue the city and she would like the City Manager to put on the record that that is not his intention.

Manager Finnie replied, no. He committed to this job through thick and thin and he is happy to be here.

Commissioner Miller concurred with Vice Mayor Johnson and suggested that the Commission move forth with giving Mr. Finnie the severance afforded in the resolution.

Commissioner Tydus stated that the former two City Managers that were eluded had severance packages, but Mr. Finnie does not. If the Commission wants to keep him until October 31, 2012 and pay him for those three months then say that, but to label that as severance is not right. In addition to that, the City Manager has enough Assistant City Managers and Assistant to the City Manager that works with him and should be able to provide the incoming City Manager with whatever information necessary. She said she would accept his resignation because that is important as far as the success of his career, but June 30, 2012 is the date upon which his agreement ends and anything after, it does not have a provision for severance pay.

Commissioner Holmes agreed with both Vice Mayor Johnson and Commissioner Miller that the Commission should give the two month severance to Mr. Finnie.

Mayor Taylor stated that the incoming City Manager does not need the old City Manager over him. She suggested that the Commission move forth with correcting the date in the resolution to correspond with his resignation.

Vice Mayor Johnson added that the severance should be for two months and not three.

Of concern to Mayor Taylor was that the resolution did not include a dollar amount and she would like that figure to be included in the agenda.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to amend the resolution by changing the effective date of the resignation from July 31, 2012 to July 27, 2012.

There being no discussion, the amendment passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

It was moved by Commissioner Holmes, seconded by Commissioner Miller to amend the agenda by changing the fourth whereas and Section 2 of the resolution as follows:

Whereas: *City Manager Bryan Finnie shall thereafter be granted two (2) months severance pay in the amount of $17,510.00 with no benefits upon the effective date of the resignation; and*

Section 2: *The City Commission of the City of Opa-locka accepts the resignation of City Manager Bryan Finnie effective July 27, 2012, and thereafter he shall receive as severance pay the amount of $17,510.00 with no benefits upon effective date of resignation.*

Vice Mayor Johnson suggested that Mr. Finnie be on a W-9 during the transition because the city cannot have two City Managers. The City Commission should be prepared to select a new City Manager on June 28, 2012 following the interviews.

Attorney Geller advised that if the Commission chooses to make its selection the following day, there is still the question to be addressed as to whether or not the Commission is going to have any other kind of agreement, a resolution, or negotiations as done in the past with people selected. The Commission must also take into consideration that the selected candidate may be currently employed and may need to provide notice.

Vice Mayor Johnson said if this should happen then the Commission has a cushion until July 27, 2012.

Attorney Geller said that the Commission is always permitted, by keeping Mr. Finnie on salary that does not require them to continue the duties because they can make any decision as to when the new person becomes in that position.

Commissioner Holmes clarified that should the Commission make a selection on the following day, they can indicate that this individual does not start until July 27, 2012.

Attorney Geller advised that the Commission can do whatever they chose when they find out who is selected.

There being no further discussion, the amendment passed by a 4-1 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	No
Commissioner Miller	Yes
Mayor Taylor	Yes

The motion on the resolution passed by a 4-1 vote.

Commissioner Tydus	No
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

17. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

18. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 11-15, THE GENERAL FUND BUDGET FOR THE

FISCAL YEAR COMMENCING OCTOBER 1, 2011 AND ENDING SEPTEMBER 30, 2012 ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", OPTION _____ (A, B, OR C); CONTAINING A REPEALER PROVISION AND SEVERABILITY CLAUSE; FURTHER PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Manager Finnie recommended that the City Commission authorize Option "A" for a $300,000.00 bank loan.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

Vice Mayor Johnson said she was more in favor of Option "B" because she would prefer using monies the city has versus money it doesn't have. Option B would allow the use $300,000.00 from the city's reserve.

Commissioner Tydus stated that she was adamantly opposed to borrowing funds so she is willing to compromise with the reserve as oppose to eliminating the six positions.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to insert the selection of Option "B".

There being no further discussion, the motion for Option "B" passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

There being no further discussion, the motion on the ordinance with the insertion of Option "B" passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 11-16, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2011 AND ENDING SEPTEMBER 30, 2012; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", REFLECTING CHANGES IN REVENUE SOURCES AS FOLLOWS: FEMA FUND (FUND 169), FIVE THOUSAND FOUR HUNDRED AND

NINETY FIVE DOLLARS ($5,495); WATER AND SEWER FUND (FUND 440), EIGHT HUNDRED AND FIFTY NINE THOUSAND NINE HUNDRED AND EIGHTY ONE DOLLARS ($859,981); CONTAINING A REPEALER PROVISION AND SEVERABILITY CLAUSE; FURTHER PROVIDING FOR AN EFFECITVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, PROHIBITING THE SALE, OFFER FOR SALE, PURCHASE WITH INTENT TO SELL OR PUBLIC DISPLAY FOR SALE OF LOOSE, LEAFY OR GRANULAR INCENSE PRODUCTS AND OTHER SYNTHETIC SUBSTANCES THAT MIMIC ILLEGAL DRUGS (SYNTHETIC MARIJUANA); PROVIDING FOR DEFINITIONS; PROVIDING FOR SEIZURE AND INJUNCTIVE RELIEF; PROVIDING FOR PENALTIES; PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE AMENDMENT TO ORDINANCE 12-10, TO AUTHORIZE THE CITY MANAGER TO EXECUTE AN AMENDED TWO-YEAR INTERLOCAL AGREEMENT WITH THE MIAMI-DADE COUNTY STORMWATER UTILITY AS TO PROVISION OF CONTRACT SERVICES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

Vice Mayor Johnson suggested that the City Manager insert the canal corrosion into this agreement.

Manager Finnie informed the Commission that there is a memorandum coming to them regarding the canal corrosion. However, this document was previously approved by the City Commission and by State Statutes they are asking for minor adjustments. He said he would look into this matter to see if the canal corrosion could be included.

Vice Mayor Johnson said she would speak with Commissioner Jordan to make sure this item is included.

Since this is first reading, Attorney Geller stated that if the City Manager is able to accomplish by the time it comes back on second reading, he would not find it a material change that would invalidate the first reading to just add an additional clause that would benefit the city. If that could be done, then the change could be accomplished on second reading.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

5. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE COMPREHENSIVE DEVELOPMENT MASTER PLAN BY CREATING THE TRANSIT ORIENTED DISTRICT (TOD) OVERLAY CLASSIFICATION, AMENDING THE FUTURE LAND USE MAP, UPDATING THE PARK AND RECREATION ELEMENT AND AUTHORIZING THE TRANSMITTAL TO THE FLORIDA DEPARTMENT OF ECONOMIC OPPORTUNITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above ordinance on first reading.

Vice Mayor Johnson stated that this particular legislation will provide opportunities for revenue.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

Mayor Taylor thanked Vice Mayor Johnson for moving so expeditiously with the City Manager selection process. In addition, she thanked her colleagues for responding in a timely fashion.

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION/PUBLIC HEARING:

19. ADMINISTRATION:

CONSENT AGENDA:

A. CITY MANAGER'S REPORT:

Manager Finnie reported that he received notification from Miami-Dade County through the CDBG process that the city will receive an additional $800,000.00 and staff will be working on that agenda item to accept those dollars.

He continued by saying that memorandums were sent out to the Commission as it relates to the Summer Work Program and Sherbondy Village. He was asked to identify options for a new City Hall and he laid those options out along with the financial impact, however, staff has not received feedback and he needs that feedback to figure out the next step. Additionally, he made a request for a summer job program to employ local adult residents to assist with the alleys, etc. and he would like to get a response in order to implement that program.

Commissioner Holmes informed the City Manager of the following concerns which he would like to be addressed:

1) Are lunch trucks required to have a special permit from the city to operate throughout the city; if so, the appropriate staff must be directed to make sure the lunch trucks owners are operating with the required permit/license
2) Provide a detailed report on the Johnson Controls issue relating to the water meters because there are still plenty complaints about high water bills
3) Wells at the Old Water Plant must be capped
4) Make sure the pump stations are working properly, including the Master Pump Station
5) Proposed 7 story senior development in front of the Opa-locka Post Office (Holmes not in agreement with this development)
6) City Manager hired the same lawn service contractor utilized by Town Center One
7) Make sure the grass at the property near Villa Francine is cut ASAP

8) Contractor brought in to run the city's Building & License Department without bringing in revenues to the city
9) Urban Rangers in need of a lawn mower
10) Completion date for the Pump Station at Sherbondy Park
11) Sherbondy Village still doesn't have a Certificate of Occupancy
12) Previous request for information relating to the modular at Sherbondy Park to relocate city offices

Vice Mayor Johnson stated that she would like to see an educational workshop offered to individuals 18 & older for employment opportunity through the CET and Weed & Seed programs. She mentioned that her organization interviewed several young men and she could not hire one because of their criminal backgrounds. She expressed the importance of working with young men at an early age to let them know the importance of having a clean record.

She continued by requesting that the City Manager work with Miami-Dade County or whoever responsible for putting the signage up on East Superior Street and NW 27th Avenue to erect a "no turn on red" sign because vehicles are driving on the sidewalks causing damage.

She further encouraged youth awareness programs throughout the city which could be incorporated through the CET program.

Manager Finnie stated that there are dollars for Crime Prevention and this is something that he can look at.

Commissioner Tydus informed the City Manager that she sent him a memorandum with administrative concerns and directives.

Mayor Taylor asked for clarification about the summer work program.

Manager Finnie reiterated that a recommendation was made to hire city residents on a temporary basis to do some summer work program and he needs the Commission to approve of this program.

Vice Mayor Johnson asked, where would the money come from?

After reviewing the budget, Manager Finnie said he was able to identify funds to accommodate this type of work force.

Prior to the Commission giving their approval, Vice Mayor Johnson suggested that the City Manager show where the money is coming from because right now there is a deficit in the budget and she is not for spending.

Manager Finnie stated that under tab 5 in their package from the City Manager, there is a memorandum dated June 06, 2012 addressing this issue. He agreed to reissue another memorandum addressing the line item whereby these monies would come from.

Vice Mayor Johnson stated that she would not want anyone to just come up with five names because there needs to be a process in order to ensure fairness. She suggested that the city be more creative and utilize existing programs providing this type of services at no cost through federal government.

Manager Finnie stated that he will provide a memorandum recommending the city move forth with this program giving the details as to where the money is coming from and how it will be spent. He will have signature pages for the Commission to sign off with their approval.

Vice Mayor Johnson said she wouldn't be in agreement with that either because it should be open to the general public where people in this area can apply for the positions which should take place through Human Resources.

Manager Finnie agreed with Vice Mayor Johnson and reiterated that he is just requesting approval to move forth with that process.

Both Mayor Taylor and Vice Mayor Johnson said that the City Manager should have had something of this importance on the agenda for approval.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and informed the Commission that the three financial reports have been included in their packet. Also, the City Commission should be in receipt of the audit financial statement for FY 2011.

Vice Mayor Johnson requested that Dr. Orji provide a copy of Florida Statutes that requires the city to have $200,000.00 in the reserves.

20. OFFICIAL BOARD REPORTS:

21. CITY ATTORNEY'S REPORT:

22. CITY CLERK'S REPORT:

Clerk Flores informed the City Commission of the Voter Education Day scheduled for July 18, 2012 @ 6:30 p.m. on the 2nd Floor of Town Center.

Mayor Taylor expressed her concern on the upcoming elections as it relates to senior citizens.

23. MAYOR/COMMISSION REPORT:

Commissioner Tydus announced that the Cinema Saturday Luncheon scheduled for the month of June has been cancelled and will resume on the last Saturday of July at 12:00 p.m.

She further announced that the City of Opa-locka in collaboration with Teen Upward Bound and The Pilots will hold a bicycle safety program on June 29, 2012 from 2:00 p.m. – 6:00 p.m. at 630

Sharar Avenue, Opa-locka, Florida. This program came as a result of the Community Relations, Recreation and Activities Board.

Vice Mayor Johnson reported that she is working on the educational compact and she has contacted the President of Florida Memorial University who has assigned the Office of Academic Affairs to work with the city along with the school board.

She mentioned that she had the opportunity to briefly meet with the Opa-locka CDC and the artists they are bringing into the Magnolia North area.

She announced that this year she would not be able to work with the Back to School Giveaway, but Commissioner Miller has agreed to take this on.

She further stated that hopefully there would be an opportunity to have the Miami Heat serve as the grand marshal for the MLK Parade in January 2013.

Mayor Taylor encouraged the City Commission to work together in order to carry out their vision for the City of Opa-locka in hopes of making it a "Five Star" city.

24. OFFICIAL BOARD APPOINTMENTS:

25. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Tydus, seconded by Vice Mayor Johnson to adjourn the meeting at 8:58 p.m.

Myra L. Taylor
MAYOR

ATTEST:

Joanna Flores
Interim City Clerk